



War Damage Act 1964

1964 CHAPTER 25

An Act to make provision for expediting the completion of payments under the War Damage Act 1943, the War Damage (Public Utility Undertakings, &c.) Act 1949 and the War Damage (Clearance Payments) Act 1960; to dissolve the War Damage Commission and transfer to the Commissioners of Inland Revenue, or, in the case of payments under section 71 of the said Act of 1943, to the Minister of Transport or the Secretary of State, the functions of the War Damage Commission and any functions which remain to be performed under those Acts by the Board of Trade; and for purposes connected with the matters aforesaid.

[25th March 1964]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

General provisions as to payments in respect of war damage to land.

1.—(1) No person shall by virtue of Part I of the War Damage Act 1943 (in this Act referred to as “the principal Act”) have a right to receive a payment of cost of works in respect of any war damage unless a claim for the payment has been made before the commencement of this Act, or is made before the end of the period of four years beginning with the commencement of this Act (in this Act referred to as “the terminal period”).

(2) No person shall by virtue of Part I of the principal Act have a right to receive a value payment, or a share of a value payment, in respect of any war damage unless either—

(a) a determination that a value payment shall be paid in respect of that war damage has been made by the

War Damage Commission before the commencement of this Act, or is made before the end of the terminal period by the Commissioners of Inland Revenue (in this Act referred to as "the Commissioners") in the performance of the functions transferred to them by virtue of this Act, or

- (b) an application for the making of such a determination has been made to the War Damage Commission before the commencement of this Act, or is made to the Commissioners before the end of the terminal period:

Provided that this subsection shall not apply to any payment, or share of a payment, under section 14 of the principal Act (which provides for payments in certain cases where land is acquired in the exercise, directly or indirectly, of compulsory powers).

(3) The risk period referred to in paragraph (a) of section 1 (1) of the principal Act shall come to an end at the commencement of this Act; and accordingly in that paragraph, for the words from "continuing until such date" to "Commons House of Parliament", there shall be substituted the words "ending with the commencement of the War Damage Act 1964".

(4) In section 13(1) of the principal Act (which provides for the making of a value payment, or of a value payment and a payment of cost of works, in certain cases, and, in particular, where the War Damage Commission are satisfied that the circumstances are such that the war damage or part of it will not in fact be made good), after the words "will not in fact be made good" there shall be inserted the words "before the end of the terminal period as defined by section 1(1) of the War Damage Act 1964".

(5) In subsection (1) of this section the reference to Part I of the principal Act includes a reference to the War Damage (Clearance Payments) Act 1960, and any reference to a payment of cost of works includes a reference to a payment under section 1 of that Act; and in this section—

- (a) any reference to a payment of cost of works includes a reference to any payment as specified in paragraph (a) of section 13(1) of the principal Act and to any payment as specified in that paragraph but limited in accordance with section 15(b) or section 20(3)(b) of the principal Act, and
- (b) (without prejudice to the proviso to subsection (2) of this section) any reference to a value payment includes a reference to a payment as specified in paragraph (b) of section 13(1) of the principal Act (including any such payment which is payable by virtue of section 11 of the War Damaged Sites Act 1949).

Dissolution of War Damage Commission and transfer of functions to Commissioners of Inland Revenue.

2.—(1) The War Damage Commission is hereby dissolved.

(2) Subject to the next following subsection, all the functions of the War Damage Commission are hereby transferred to the Commissioners; and any reference to the War Damage Commission in any enactment, or in any instrument having effect by virtue of an enactment, shall, in relation to anything done or falling to be done after the commencement of this Act, be construed as a reference to the Commissioners.

(3) The last preceding subsection shall not apply to any such functions of the War Damage Commission as are mentioned in section 5 of this Act.

(4) All such functions as, apart from this Act, would fall to be performed by the Board of Trade under the principal Act or under the War Damage (Public Utility Undertakings, &c.) Act 1949, or under any instrument having effect by virtue of either of those Acts, are hereby transferred to the Commissioners; and, in relation to anything done or falling to be done after the commencement of this Act, any reference in either of those Acts, in section 2 of the Miscellaneous Financial Provisions Act 1946 or in any such instrument to the Board of Trade shall be construed accordingly:

Provided that this subsection shall have effect subject to the provisions of section 8 of this Act.

(5) The provisions of Schedule 1 to this Act shall have effect with respect to functions transferred to the Commissioners by virtue of this Act; and the transitional provisions contained in Schedule 2 to this Act shall have effect in connection with the transfer of those functions and the dissolution of the War Damage Commission.

Termination of temporary works payments.

3.—(1) No person shall have a right to receive any payment by virtue of section 6 (2) of the principal Act (which relates to works executed temporarily to meet the circumstances created by war damage) unless a claim for that payment has been made before the commencement of this Act.

(2) No payment shall be made after the commencement of this Act in respect of any works by virtue of paragraph (c) of section 69(4) of the principal Act (which relates to temporary works payments in respect of land held for certain charitable purposes) unless an application for the payment has been made to the War Damage Commission before the commencement of this Act.

Land held for charitable purposes.

4.—(1) This section applies to any land in respect of which the Commissioners are satisfied that the conditions specified in paragraphs (a) and (b) of section 69(2) of the principal Act are fulfilled.

(2) In respect of war damage to land to which this section applies—

- (a) no payment shall be made by the Commissioners in accordance with the special arrangements relating to war damage to church buildings (in this section referred to as “the church scheme”) unless an application for a payment under the church scheme in respect of that war damage has been made to the War Damage Commission before the commencement of this Act, or is made to the Commissioners before the end of the terminal period ;
- (b) in so far as the war damage does not fall within the church scheme, no payment shall be made by the Commissioners under section 69(4) of the principal Act unless an application for such a payment to be made in respect of the war damage has been made to the War Damage Commission before the commencement of this Act, or is made to the Commissioners before the end of the terminal period.

5.—(1) The functions of the War Damage Commission under section 71 of the principal Act are hereby transferred, in relation to England and Wales, to the Minister of Transport, and, in relation to Scotland, to the Secretary of State ; and accordingly, in relation to anything done or falling to be done after the commencement of this Act for the purposes of that section or of the highways scheme, references to the War Damage Commission in that section or that scheme, or in any other enactment or instrument having effect by virtue of any enactment, shall be construed as references to that Minister or the Secretary of State, as the case may be.

(2) Paragraphs 3 and 5 of Schedule 2 to this Act shall have effect in relation to functions transferred by virtue of this section, as if in those paragraphs any reference to the Commissioners were a reference to the Minister of Transport or the Secretary of State, as the case may require.

(3) In this section “the highways scheme” means the scheme having effect by virtue of the War Damage (Highways Scheme) Order 1943.

6.—(1) This section applies to any payment which, apart from this Act, would fall to be made—

- (a) by the War Damage Commission or the Board of Trade under section 18 of the War Damage (Public Utility Undertakings, &c.) Act 1949 (which provides for the

Payments under certain provisions of War Damage (Public Utility Undertakings, &c.) Act 1949.

making of payments in respect of war damage causing obstruction in certain waterways), or

- (b) by the War Damage Commission under paragraph 2(1) or paragraph 3 of Schedule 3 to that Act (which provide for the making of certain payments in respect of works of which the cost has been incurred by a person other than the body carrying on the relevant public utility undertaking).

(2) No person shall by virtue of the said Act of 1949 have a right to receive any payment to which this section applies unless a claim for the payment has been made to the War Damage Commission or, in appropriate cases, the Board of Trade before the commencement of this Act, or is made to the Commissioners before the end of the terminal period.

Final
termination of
war damage
payments.

7.—(1) No person shall by virtue of any of the Acts specified in the next following subsection have a right to receive from the Commissioners any payment in respect of any war damage after the end of the period of ten years beginning with the commencement of this Act.

(2) The Acts referred to in the preceding subsection are the principal Act, the War Damage (Public Utility Undertakings, &c.) Act 1949 and the War Damage (Clearance Payments) Act 1960.

(3) Subsection (1) of this section shall not be construed as preventing the Commissioners from making any payment after the end of the period mentioned in that subsection in a case where they are satisfied—

- (a) that a right to receive the payment would subsist apart from this section, and
- (b) that the delay in making the payment is not attributable to any default on the part of the person claiming the payment.

(4) Subsection (1) of this section shall have effect without prejudice to any other limitation imposed by this Act, or by any other enactment, on the right to receive any payment.

Winding up of
unclaimed
balances
account.

8.—(1) As soon as practicable after the commencement of this Act, the Board of Trade shall wind up the War Damage (Mutual Insurance Funds Unclaimed Balances) Account (in this Act referred to as “the unclaimed balances account”).

(2) Any right which any person may have in respect of moneys paid into the unclaimed balances account is hereby extinguished.

9.—(1) The enactments specified in the next following sub-section shall not have effect so as to require any notification to be given thereunder after the end of the terminal period.

Termination of notifications under certain enactments.

(2) The said enactments are—

- (a) section 4 of the Acquisition of Land (Authorisation Procedure) Act 1946 and section 4 of the Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947 (which require notification to be given of certain transactions relating to the acquisition of war-damaged land);
- (b) section 74(3) of the Town and Country Planning Act 1962 and section 36(3) of the Town and Country Planning (Scotland) Act 1947 (which require notification to be given of an order containing a direction for expedited completion of a compulsory acquisition of war-damaged land); and
- (c) section 53 of the Town and Country Planning Act 1944 and section 51 of the Town and Country Planning (Scotland) Act 1945, as applied respectively by the New Towns Act 1946 (which make similar provision where the order providing for expedited completion is for the acquisition of land under the said Act of 1946).

10.—(1) Any sums required for paying remuneration or allowances under Schedule 1 to this Act shall be paid out of moneys provided by Parliament.

Financial provisions.

(2) Section 2 of the Miscellaneous Financial Provisions Act 1946 (which provides for the charging of sums on the Consolidated Fund) shall not apply to any sums required for the making of payments by the Minister of Transport or the Secretary of State under section 71 of the principal Act; and any expenditure incurred by that Minister or the Secretary of State in making any such payments shall be defrayed out of moneys provided by Parliament.

(3) The Treasury may at any time direct, or if they think fit may by regulations made by statutory instrument provide, that any payments which fall to be made on or after such date as may be specified in the direction or regulations and are payments to which section 2 of the said Act of 1946 applies shall be made out of moneys provided by Parliament, instead of being charged on the Consolidated Fund.

(4) Any moneys which, on the completion of the winding up of the unclaimed balances account, remain standing to the credit of that account shall be paid into the Exchequer.

Interpretation. 11.—(1) In this Act, except in so far as the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say:—

“the Commissioners” means the Commissioners of Inland Revenue;

“functions” includes powers and duties, and any reference to the performance of functions shall be construed accordingly;

“the principal Act” means the War Damage Act 1943;

“the terminal period” has the meaning assigned to it by section 1(1) of this Act.

(2) Expressions used in this Act to which meanings are assigned by the principal Act have the same meanings in this Act as in that Act.

(3) Except in so far as the context otherwise requires, any reference in this Act to an enactment shall be construed as a reference to that enactment as amended or extended by or under any other enactment.

Repeals.

12. The enactments specified in Part I of Schedule 3 to this Act are hereby repealed to the extent specified in relation thereto in the third column of that Part of that Schedule; and the enactments specified in Part II of that Schedule are hereby repealed as from the end of the terminal period to the extent specified in relation thereto in the third column of that Part of that Schedule.

**Northern
Ireland.**

13.—(1) The provisions of this section shall have effect for the purposes of the application of this Act to Northern Ireland.

(2) “Enactment” in this Act includes an enactment of the Parliament of Northern Ireland.

(3) The following provisions of this Act, that is to say, the proviso to section 1(2), section 2(3) and sections 5 and 9 shall not apply.

(4) In Part I of Schedule 3 to this Act, the repeal relating to the House of Commons Disqualification Act 1957 shall have effect for the purposes of that Act in its application to the Senate and House of Commons of Northern Ireland as well as in its application to the House of Commons of the Parliament of the United Kingdom.

**Short title,
citation and
commence-
ment.**

14.—(1) This Act may be cited as the War Damage Act 1964.

(2) The War Damage Act 1943, the War Damage (Public Utility Undertakings, &c.) Act 1949, the War Damage (Clearance Payments) Act 1960 and this Act may be cited together as the War Damage Acts 1943 to 1964.

(3) This Act shall come into operation on 1st October 1964.

SCHEDULES

SCHEDULE 1

PERFORMANCE OF FUNCTIONS OF COMMISSIONERS

1. This Schedule applies to any functions transferred to the Commissioners by virtue of this Act.

2. Any functions of the Commissioners to which this Schedule applies may be performed by such officer of the Commissioners as may for the time being be authorised by them to act (either generally or for the particular purpose in question) in the performance of those functions.

3. The Commissioners may make such arrangements as they think fit for securing that determinations made, in the performance of those functions, by officers of the Commissioners acting in any locality are subject to review either—

(a) by superior officers of the Commissioners, or

(b) by other persons appointed by the Commissioners for the purpose, who shall be known as "War Damage Reviewing Commissioners";

and any determination made in pursuance of those arrangements (whether it confirms, varies or reverses the decision of the officer whose determination is reviewed) shall have effect as a determination of the Commissioners.

4. Any document purporting to be an instrument made or issued by or on behalf of the Commissioners, in the performance of any functions to which this Schedule applies, and to be signed by a secretary or assistant secretary of the Commissioners or by any other person authorised to act in that behalf, shall be received in evidence, and shall, unless the contrary is proved, be deemed to be an instrument made or issued by or on behalf of the Commissioners in the performance of those functions; and prima facie evidence of any such instrument may, in any legal proceedings (including arbitrations), be given by the production of a document purporting to be certified to be a true copy of the instrument and to have been so signed.

5. The last preceding paragraph shall have effect without prejudice to the generality of section 24 of the Inland Revenue Regulation Act 1890 (which relates to evidence of acts of the Commissioners).

6. There shall be paid to War Damage Reviewing Commissioners such remuneration (whether by way of salaries or by way of fees), and such allowances, as the Treasury may determine.

SCHEDULE 2

TRANSITIONAL PROVISIONS

1. The War Damage Commission shall not be required to prepare an account under subsection (2) of section 2 of the Miscellaneous Financial Provisions Act 1946 in respect of—

(a) any sums issued out of the Consolidated Fund under that section which were received by them after 31st March 1964, or

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(b) any payments made by them after that date out of sums issued under that section.

2. In respect of the financial year 1964-65, the Commissioners shall be required to prepare an account under subsection (2) of that section if either—

(a) any sums have been received or payments made as mentioned in the preceding paragraph, or

(b) any sums issued out of the Consolidated Fund under that section are received by them in that year, or any payments are made by them in that year out of sums so issued ;

and any account prepared by the Commissioners under the said subsection (2) in respect of that year shall include any sums received or payments made as mentioned in either sub-paragraph (a) or sub-paragraph (b) of this paragraph.

3. Neither the transfer of functions to the Commissioners effected by this Act, nor the dissolution of the War Damage Commission, shall invalidate any determination made, or other thing done, before the commencement of this Act in the performance by the War Damage Commission or the Board of Trade of the functions transferred to the Commissioners by virtue of this Act ; and every determination or thing so made or done, in so far as it could have been made or done by the Commissioners if it had fallen to be made or done after the commencement of this Act, shall have effect as from the commencement of this Act as if it had been made or done by the Commissioners.

4. If any appeal under section 32(3) of the principal Act is pending at the commencement of this Act, the Commissioners shall be entitled to appear and to be heard on the appeal.

5. If at the commencement of this Act any proceedings are pending by or against the War Damage Commission, or are pending by or against the Board of Trade in respect of any matter arising out of functions of the Board transferred to the Commissioners by virtue of this Act, the proceedings may be continued on and after the commencement of this Act by or against the Commissioners.

SCHEDULE 3

ENACTMENTS REPEALED

PART I

ENACTMENTS REPEALED AS FROM COMMENCEMENT OF ACT

Chapter	Short Title	Extent of Repeal
6 & 7 Geo. 6. c. 21.	The War Damage Act 1943.	Section 3.
5 & 6 Eliz. 2. c. 20.	The House of Commons Disqualification Act 1957.	Paragraphs 1 to 8 of Schedule 1. In Schedule 1, in Part II, the words "the War Damage Commission".

PART II

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ENACTMENTS REPEALED AS FROM END OF TERMINAL PERIOD

Chapter	Short Title	Extent of Repeal
7 & 8 Geo. 6. c. 47.	The Town and Country Planning Act 1944.	Section 53 as applied by the New Towns Act 1946.
8 & 9 Geo. 6. c. 33.	The Town and Country Planning (Scotland) Act 1945.	Section 51 as applied by the New Towns Act 1946.
9 & 10 Geo. 6. c. 49.	The Acquisition of Land (Authorisation Procedure) Act 1946.	Section 4.
10 & 11 Geo. 6. c. 42.	The Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947.	Section 4.
10 & 11 Geo. 6. c. 53.	The Town and Country Planning (Scotland) Act 1947.	Section 36(3).
10 & 11 Eliz. 2. c. 38.	The Town and Country Planning Act 1962	Section 74(3).

*Table of Statutes referred to in this Act*

Short Title	Session and Chapter
Inland Revenue Regulation Act 1890	53 & 54 Vict. c. 21.
War Damage Act 1943	6 & 7 Geo. 6. c. 21.
Town and Country Planning Act 1944	7 & 8 Geo. 6. c. 47.
Town and Country Planning (Scotland) Act 1945 ...	8 & 9 Geo. 6. c. 33.
Miscellaneous Financial Provisions Act 1946 ...	9 & 10 Geo. 6. c. 40.
Acquisition of Land (Authorisation Procedure) Act 1946.	9 & 10 Geo. 6. c. 49.
New Towns Act 1946	9 & 10 Geo. 6. c. 68.
Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947.	10 & 11 Geo. 6. c. 42.
Town and Country Planning (Scotland) Act 1947 ...	10 & 11 Geo. 6. c. 53.
War Damage (Public Utility Undertakings &c.) Act 1949.	12, 13 & 14 Geo. 6. c. 36.
War Damaged Sites Act 1949	12, 13 & 14 Geo. 6. c. 84.
House of Commons Disqualification Act 1957 ...	5 & 6 Eliz. 2. c. 20.
War Damage (Clearance Payments) Act 1960 ...	8 & 9 Eliz. 2. c. 25.
Town and Country Planning Act 1962	10 & 11 Eliz. 2. c. 38.